

**Waiver of Hearing on Denied Request
for Temporary Restraining Order**

Use this form **only** to waive (cancel) the hearing date in item ③ on Form DV-109, Notice of Court Hearing.

Clerk stamps date here when form is filed.

① **Name of Person Asking for Protection:**

② **Name of Person to Be Restrained:**

To the Person in ①

- Some or all of the temporary restraining orders you requested were denied for the reasons listed on Form DV-109, *Notice of Court Hearing*.
- The court has set a hearing and might make the orders you want after the hearing.
- Use this form **only** if you want to cancel the hearing date listed on Form DV-109, item ③. If you want to cancel the hearing, sign this form below and file it with the court clerk. Do not serve Form DV-109 and other papers on the person in ②.
- If you already served Form DV-109 and other papers on the person in ②, you must notify that person that you have canceled the hearing. If the person in ② files a response before you file this form, the court may still hear the case.
- If the hearing is canceled, any temporary orders made on Form DV-110, *Temporary Restraining Order* will end on the hearing date. You may file a new request for temporary restraining orders on the same or different facts at a later date.

Fill in court name and street address:

Superior Court of California, County of

Fill in case number:

Case Number:

I have read this form and I understand that I have a right to a court hearing. By signing below, I am asking the court to cancel the hearing listed on Form DV-109, *Notice of Court Hearing*. I understand that any orders already made by the court on Form DV-110, *Temporary Restraining Order* will end on the hearing date.

I declare under penalty of perjury under the laws of the State of California that the information above is true and correct.

Date: _____

Type or print your name

► _____
Sign your name

This is not a Court Order.